

Order entered 8/20/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,926.31.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

5. 9:00 AM CASE NUMBER: L25-02862
CASE NAME: WELLS FARGO BANK, N.A. VS. SALLIE KNOWLTON
*HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED FILED BY PLN ON 11/24/25
FILED BY: KNOWLTON, SALLIE

TENTATIVE RULING:

Plaintiff filed a motion to deem as true requests for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court’s mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court to notify Defendant.

6. 9:00 AM CASE NUMBER: L25-03679

CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
HEARING IN RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT
FILED BY:

TENTATIVE RULING:

Background

Defendant seeks to file a Cross Complaint against Plaintiff, where the causes of action stem from the debt at issue in Plaintiff's Complaint. Specifically, Defendant alleges causes of action relating to the collection practices of Plaintiff during prosecution, as well as to the conduct of the Plaintiff during its reporting of Plaintiff's debt to third party credit agencies.

The pleadings from both parties were filed and served properly.

Analysis

A defendant's cross complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action...in [the] complaint. Code of Civ Procedure Section 426.10(c). Causes of action arise out of the same transaction or occurrence if the factual or legal issues are logically related. "[T]ransaction is construed broadly; it is not confined to a single, isolated act or occurrence...but may embrace a series of acts or occurrences logically interrelated." *Heshejin v. Rostami* (2020) 54 CA5th 984, 993-994.

To be considered a compulsory cross-complaint, the cause of action must have existed at the time Defendant served its answer to the complaint. CCP Section 426.30(a),

The court has the discretion to allow a defendant to file a cross-complaint at any time during a lawsuit. In fact, the court must grant leave as long as the defendant is acting in good faith. CCP 426.50; *Silver Organizations Ltd. v. Frank* (1990) 217 CA3d 94, 98-99.

In the instant matter, only the third and fourth causes of action appear to have occurred prior to the filing of the Answer in the matter. The other causes allude to the litigation practices of the Plaintiff, such as the manner in which they responded to Defendant's discovery requests, or the methods the Plaintiff has employed to reach a settlement during the prosecution of their complaint.

The third and fourth causes of action alleged by Defendant concern the alleged behavior of Plaintiff with respect to the reporting of Defendant's debt to third parties – the very debt at issue in the instant matter - and whether this reporting was done in bad faith, or without reasonable diligence. While Defendant does not specify when these actions are alleged to have occurred, they do not appear to hinge on the instant action – in other

words, they don't appear to be behaviors tied to prosecution of the lawsuit.

Plaintiff complains that Defendant has already had the opportunity to file a cross complaint, and should not be given another. But there was no bad faith in Defendant's unsuccessful bid to file a cross complaint. Defendant is self-represented, and attempted to file a cross-complaint within an amended Answer. This was a procedural error, nothing more. Defendant then filed an appropriate motion for leave to file a cross complaint the very next day after the court on the unsuccessful attempt. This is not the behavior of a party acting in bad faith.

Considering that the spirit of the law is one in which courts should be liberal in granting such requests in the absence of bad faith, this court will allow leave to file a cross complaint but for only the third and fourth causes of action.

Disposition

Defendant's Motion is granted, but only for the third and fourth causes of action.

Defendant must file this Cross Complain within 5 calendar days of this ruling.

Defendant also to file the order on this Motion.

7. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED**

FILED BY: TD BANK USA, N.A.

TENTATIVE RULING:

Plaintiff filed a motion to deem as true matters requested for admission by the Defendant. The Motion and its supporting documents are timely.

This Motion is unopposed. However, this motion was originally scheduled for 2/24/06, but was rescheduled for 3/24/26. And though there was mail notice for the 2/24/26 appearance, it does not appear that the court notified Defendant of the new date.

This was the court's mistake and it extends its apology.

Disposition

Motion will be continue to 6/2/26, 9am.

Court will notify Defendant.